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Submitter Information

Name: Andrew Dunn

[REDACTED]

General Comment

See attached file(s)

Attachments

White House AI Action Plan Comment Letter

March 15, 2025

From:
Andrew Dunn
Library Aide

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who works in a field that constantly works with copyright law, which serves all people. I know authors and creators who have worked hard for years to develop the skills and knowledge to build their business, and have been lucky enough to be in an industry that supports them and to live in a country with laws that would support them – at least that's what I believed.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. Artists' and authors' unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without their consent or any compensation. The AI systems ingest their work, reassemble it, and then sell it back to AI system clients – directly competing with creators and cutting them out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If the American creators do not own their creations, and everything they put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will creators possibly make a living doing these things?

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that individuals can decide when and where their work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Creators' work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.